

7th Chapter

Islamic Laws and Islamic Jurisprudence

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Sources of Islamic Jurisprudence (Fiqh)

The Quran (Primary Source):

The Hadith / Sunnah (Primary Source)

Ijma' (Consensus)

Qiyas (legal analogy)

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Islamic Laws and Islamic Jurisprudence

► Topics:

- Introduction to Islamic Laws and Jurisprudence
- Sources of Islamic Jurisprudence (Fiqh)
- The Quran (Primary Source):
- The Hadith / Sunnah (Primary Source)
- Ijma' (Consensus)
- Qiyas (legal analogy)

Introduction to Islamic Laws and Jurisprudence

Shariah: The Path of Islamic Law

What is Islamic Law?

Islamic Law is called Shariah: Shariah means "the clear path" or "the way to live a good life."

It guides Muslims on how to live according to Allah's will.

Helps in Everyday Life: It covers personal, social, and religious matters. It teaches us how to pray, be honest, treat family kindly, and do fair business.

Follows Allah's Commands: Shariah helps Muslims live the way Allah wants – with kindness, fairness, and respect.

What Does Shariah Teach Us in Daily Life?

Shariah provides guidance on:

- **Worship:** Praying five times a day, fasting in Ramadan, giving money to poor people (Zakat).
- **Family Life:** Getting married the right way, treating your spouse kindly, teaching kids good manners.
- **Business:** Selling honestly, not cheating in weight or price, keeping promises.
- **Community:** Being fair to everyone, helping those in need, being kind to neighbors.

Understanding Fiqh: Applying Islamic Teachings in Daily Life

A. What is Fiqh(Islamic Jurisprudence - فقه)?

Fiqh means understanding Islamic laws and how to live as a good Muslim by following Allah's guidance.

Scholars study the Quran and Hadith to make rules. It helps scholars:

- **Interpret** the Quran and Hadith to understand Allah's commands.
- **Make decisions** for new situations not directly mentioned in the Quran or Hadith.

Areas Covered by Fiqh:

1. Worship (Ibadah):

- Praying five times a day.
- Fasting during Ramadan.
- Giving Zakat (charity to the needy).
- Example: Knowing how to perform ablution (wudu) before prayer.

2. Family Life:

- Marriage and divorce rules.
- Raising children with good manners.
- Example: Understanding the rights and responsibilities between spouses.

3. Business & Transactions:

- Honest trade practices.
- Avoiding interest (riba) in financial dealings.
- Example: Ensuring fairness in buying and selling goods.

4. Criminal Laws:

- Justice in dealing with crimes.
- Punishments for theft, lying, etc.
- Example: Implementing fair trials and evidence before judgment.

Shariah: The Path of Islamic Law (The Quran & The Hadith)

Main Sources of Shariah (Islamic Law)

1. The Primary Source:

The Quran - The holy book from Allah, sent to Prophet Muhammad ﷺ. It teaches us how to live a good life, like being honest, praying, and helping others.

- The Quran is the word of Allah (God).
- Revealed to Prophet Muhammad (PBUH) over 23 years.
- It has 114 chapters called Surahs. Teaches about faith, worship, and daily life.

How Was the Quran Collected?

- During Prophet Muhammad's (PBUH) life, the Quran was memorized and written on materials like leaves and bones.
- After his death, Caliph Abu Bakr asked Zayd ibn Thabit to collect it into a book.
- Later, Caliph Uthman made copies to send to different places.

Shariah: The Path of Islamic Law (The Quran & The Hadith)

Main Sources of Shariah (Islamic Law)

2. The Second Source:

The Hadith - The holy book from Allah, sent to Prophet Muhammad ﷺ. It teaches us how to live a good life, like being honest, praying, and helping others.

- Hadith are the sayings and actions of Prophet Muhammad (PBUH).
- They explain the Quran and show how to practice Islam.
- Help Muslims understand how to pray, fast, and live rightly.

How Were Hadith Collected?

After the Prophet Passed Away

- His companions remembered what he said and did.
- Later, scholars wrote these down so they would not be forgotten.

Famous Books of Hadith:

- Sahih al-Bukhari – Collected by Imam Bukhari
- Sahih Muslim – Collected by Imam Muslim
- Sunan Abu Dawood – Collected by Abu Dawood
- Jami' at-Tirmidhi – Collected by Imam Tirmidhi

Shariah: The Path of Islamic Law (The Quran & The Hadith)

Main Sources of Shariah (Islamic Law)

Types of Hadith

Sahih (Authentic)

This Hadith is strong, true, and comes from honest people.

Example: Used in books like Sahih Bukhari and Sahih Muslim..

Hasan (Good)

This Hadith is good and true but not as strong as Sahih.

Scholars still accept and use it.

Da'if (Weak)

This Hadith has a weak chain or a mistake.

Not used for making Islamic laws, but sometimes used for personal advice (with care).

Mawdu' (Made-up/Fake)

This Hadith is not true. It was made up by someone.

Muslims should not follow this type of Hadith.

Shariah: The Path of Islamic Law (The Quran & The Hadith)

Main Sources of Shariah (Islamic Law)

How Quran and Hadith Work Together

The Quran gives general rules.

The Hadith explains how to follow those rules.

Example:

- Quran says to pray.
- Hadith shows how to perform the prayer.

Other Sources in Fiqh

Ijma' (Consensus of Scholars): Ijma' means that all Islamic scholars agree on a religious issue.

Issue: During the Prophet Muhammad's (PBUH) time, Tarawih prayers were performed individually or in small groups.

Ijma' Application: Caliph Umar ibn al-Khattab gathered people to perform Tarawih in congregation, and the companions agreed with this practice.

Outcome: The collective agreement (Ijma') established the practice of performing Tarawih prayers in congregation during Ramadan.

Qiyas (Analogical Reasoning): Qiyas is using known Islamic rules to decide on new issues by finding similarities.

Issue: After the Prophet Muhammad's (PBUH) death, there was concern about preserving the Qur'an as many memorizers were passing away.

Ijma' Application: The companions agreed to compile the Qur'an into a single book to ensure its preservation.

Outcome: The Qur'an was compiled during Caliph Abu Bakr's time and later standardized under Caliph Uthman.

Consensus of Scholars Regarding Current Issues

Understanding Ijma in Today's World

What is Ijma?

Ijma - إجماع means the agreement of Islamic scholars on a religious issue. It is one of the main sources of Islamic law, along with:

Qur'an: The holy book of Islam.

Sunnah: Teachings and practices of Prophet Muhammad ﷺ.

Qiyas: Reasoning by analogy.

Ijma helps Muslims understand and apply Islamic teachings to new situations.

Examples of Ijma Islamic

Banking: Scholars agreed that charging interest (riba) is prohibited. This consensus led to the development of Islamic banking systems that comply with Shariah law.

Organ Donation: Initially debated, many scholars now agree that organ donation is permissible if it saves lives and follows ethical guidelines. This aligns with the Qur'anic principle of saving human life.

Use of Technology in Worship: Scholars discuss the use of apps for Qur'an recitation. The consensus is that technology can assist but should not replace human elements in worship.

Consensus of Scholars Regarding Current Issues

Types of Ijma

1. Ijma Qawli (Spoken Agreement)

Meaning: All Islamic scholars clearly and openly agree on a specific ruling.

Example: The agreement that Muslims must pray five times a day.

Reference: This type of consensus is considered definitive and binding in Islamic law

2. Ijma Sukuti (Silent Agreement)

Meaning: Some scholars express an opinion, and others remain silent without objection, indicating acceptance.

Example: The acceptance of organ donation to save lives, where some scholars approved, and others did not object.

Reference: This form of consensus is recognized when scholars are informed of an opinion and do not express disagreement.

3. Practical Ijma (Consensus by Practice)

Meaning: A practice is widely adopted by the Muslim community without opposition from scholars.

Example: The compilation of the Qur'an into a single book during Caliph Uthman's time, which was accepted and practiced by the community.

Reference: This type of consensus is established through the consistent and unopposed practice of the community.

Consensus of Scholars Regarding Current Issues

Why is Ijma Important Today?

Solving New Problems

Ijma helps address new issues not directly mentioned in the Qur'an or Sunnah.

Example: Islamic scholars have discussed and agreed upon the permissibility of organ donation to save lives, aligning with the Qur'anic principle of saving a life ([Surah Al-Ma'idah, 5:32](#)).

Keeping Islam Relevant

It ensures Islamic teachings stay relevant in modern times.

Example: The development of Islamic banking systems that comply with Shariah law, avoiding interest (riba), shows how Ijma keeps Islamic principles applicable today.

Providing Unified Guidance

Ijma offers unified guidance to Muslims worldwide.

Example: The consensus on the compilation of the Qur'an during Caliph Uthman's time ensured that all Muslims follow the same text.

Qur'an: Surah Al-Ma'idah, 5:32 – Emphasizes the value of saving human life.

Hadith: Prophet Muhammad (peace be upon him) said, "My ummah will never agree upon an error." (Sunan Ibn Majah)

Consensus of Scholars Regarding Current Issues

Medical and Bioethical Concerns

What Are These Issues? Modern medicine has introduced new treatments and technologies. Muslims seek guidance to ensure these align with Islamic teachings. Scholars use Ijma (consensus) to provide rulings on such matters.

1. Organ Transplantation

• **Issue:** Is it allowed to donate or receive organs?

• **Islamic View:** Many scholars agree it's permissible if:

- The donor is deceased or consents willingly.
- The procedure saves a life and doesn't harm the donor.

Example: A person donates a kidney to a relative, saving their life.

• **Qur'anic Reference:** "Whoever saves a life, it is as if they saved all of humanity." (Surah Al-Ma'idah, 5:32)

2. In Vitro Fertilization (IVF)

• **Issue:** Can couples use IVF to have children?

• **Islamic View:** Permissible if:

- Both sperm and egg are from a married couple.
- No third-party donors are involved.

Example: A married couple uses IVF to conceive using their own sperm and egg.

• **Note:** Surrogacy (using another woman to carry the baby) is not allowed.

Consensus of Scholars Regarding Current Issues

Medical and Bioethical Concerns

3. Cloning

•**Issue:** Is creating a genetic copy of a human acceptable?

•**Islamic View:** Generally not allowed, as it interferes with natural creation and lineage.

Example: Cloning animals for research may be acceptable, but cloning humans is prohibited.

4. Stem Cell Research

•**Issue:** Can stem cells be used for medical treatments?

•**Islamic View:** Allowed if:

- Stem cells are obtained ethically (e.g., from early embryos before 14 days).
- Used to treat diseases and not for creating life.

Example: Using stem cells to treat a child's leukemia.

5. Euthanasia (Assisted Dying)

Issue: Is it permissible to end a life to relieve suffering?

Islamic View: Not allowed. Life is sacred, and only Allah decides its end.

Example: A terminally ill patient is given pain relief but not assisted in dying.

Note: Stopping futile treatment when death is certain is permissible.

Consensus of Scholars Regarding Current Issues Artificial Intelligence and Robotics

Use of AI in Daily Life

Issue: AI is increasingly used in various aspects of daily life, including religious practices.

Islamic View: Islam encourages the use of beneficial technology, as long as it aligns with Islamic principles.

Example: Muslim apps that use AI to help users learn and recite the Qur'an correctly.

Reference: Islamic scholars have been keen to examine the interaction between AI and faith to ensure technology supports Islamic values.

Robots Leading Prayers

Issue: Can robots lead Islamic prayers (Salat)?

Islamic View: Leading prayers requires human qualities like intention and spirituality, which robots lack.

Example: A robot may assist by displaying prayer times or guiding physical movements but cannot lead the congregation.

Reference: Scholars agree that technology can assist in worship but should not replace human roles.

Consensus of Scholars Regarding Current Issues Artificial Intelligence and Robotics

Privacy Concerns in the Age of AI

Issue: AI Devices Collecting Personal Data

Today, many smart devices like phones, home assistants, and apps collect personal information. This can include conversations, locations, and habits. Sometimes, this data is collected without the user's clear permission.

Islamic View on Privacy

In Islam, privacy is very important. The Qur'an teaches Muslims not to spy on others or invade their privacy.

Qur'anic Reference: "O you who have believed, avoid much [negative] assumption. Indeed, some assumption is sin. And do not spy..."

— Surah Al-Hujurat (49:12)

This means Muslims should respect others' private information and spaces.

Example

Imagine using a voice-activated assistant at home. If it records conversations without you knowing, that's a privacy concern. Islam teaches that such actions are not acceptable, as they intrude on personal space.

Islamic Guidance

Consent: Always ask for permission before accessing someone's personal information.

Transparency: Be clear about what data is collected and how it's used.

Protection: Safeguard the data you collect to prevent misuse.

By following these principles, technology can be used in a way that respects Islamic values and protects individual privacy.

Consensus of Scholars Regarding Current Issues

Gender and Social Issues

Women's Roles in Leadership

Issue:

Can women hold leadership positions in politics and education?

Islamic View:

Some scholars agree that women can be leaders in areas like education and politics, as long as they follow Islamic principles.

Example:

In Indonesia, female Islamic scholars have taken on leadership roles and have been recognized for their contributions to Islamic scholarship.

Gender Equity

•**Issue:** Are men and women treated equally in Islam?

Islamic View: Islam teaches that men and women are equal in the eyes of Allah. They have different roles but are equally important.

Example: Women have the right to own property, receive education, and participate in social activities.

LGBTQ+ Matters

•**Issue:** What is Islam's stance on LGBTQ+ issues?

Islamic View: Traditional Islamic teachings consider homosexual acts as prohibited. However, there is an emphasis on treating all individuals with respect and compassion.

Islam addresses gender and social issues by emphasizing justice, compassion, and adherence to its teachings. While interpretations may vary, the core principles focus on respect, equity, and the well-being of the community.

Consensus of Scholars Regarding Current Issues

Environmental Sustainability

What Does Islam Say About the Environment?

Islam teaches that humans are caretakers (khalifah) of the Earth. This means we are responsible for protecting and preserving nature.

Qur'anic Reference:

"Indeed, the wasteful are brothers of the devils." — Surah Al-Isra (17:27)

Prophetic Tradition:

The Prophet Muhammad (peace be upon him) said,
"If a Muslim plants a tree or sows seeds, and then a bird, or a person or an animal eats from it, it is regarded as a charitable gift for him."
— Sahih Bukhari

Climate Change

Issue:

Rising temperatures, melting ice caps, and extreme weather events.

Islamic View:

Causing harm to the Earth is discouraged. Muslims are urged to live in balance with nature.

Example:

The Islamic Declaration on Global Climate Change calls Muslims to reduce greenhouse gas emissions and adopt sustainable practices.

Consensus of Scholars Regarding Current Issues

Environmental Sustainability

Renewable Energy

Issue: Dependence on fossil fuels leads to pollution.

Islamic View: Using clean energy aligns with the principle of not harming the environment.

Example: Some mosques have installed solar panels to reduce their carbon footprint.

Waste Management

Issue: Excessive waste pollutes land and water.

Islamic View: Wastefulness is discouraged. Muslims are encouraged to recycle and reuse.

Example: Community programs promote recycling and proper waste disposal in Muslim-majority countries.

Consensus of Scholars Regarding Current Issues Technology and Digital Ethics

Cybersecurity

Issue: Protecting personal information online.

Islamic View: Islam emphasizes the importance of privacy and safeguarding personal data.

Example: Using strong passwords and not sharing others' private information without permission aligns with Islamic teachings on respecting others' privacy.

Reference: The Qur'an advises, "Do not spy on one another" (Surah Al-Hujurat, 49:12), highlighting the importance of privacy.

Social Media Behavior

Issue: Sharing false information or engaging in harmful behavior online.

Islamic View: Muslims are encouraged to be honest, respectful, and avoid spreading falsehoods.

Example: Before sharing news on social media, verifying its authenticity reflects the Islamic principle of honesty.

Reference: The Prophet Muhammad (peace be upon him) said, "Whoever believes in Allah and the Last Day should speak good or remain silent" (Sahih Bukhari).

Consensus of Scholars Regarding Current Issues Technology and Digital Ethics

Blockchain Technology

Issue: Using blockchain in financial transactions.

Islamic View: Blockchain's transparency and security can align with Islamic principles if used ethically.

Example: Some Islamic financial institutions use blockchain to ensure transparent and interest-free transactions.

Reference: Islamic finance principles emphasize transparency and fairness, which blockchain can support when applied correctly.

Consensus of Scholars Regarding Current Issues

How is Ijma Formed Today?

Ijma means that Islamic scholars agree on a religious issue. Today, scholars follow a step-by-step process to form Ijma on new topics:

Identify New Issues

What Happens:

Scholars notice new problems in modern life that need Islamic guidance.

Example:

Questions arise about the permissibility of organ donation or using digital currencies like Bitcoin.

Study Islamic Sources

What Happens:

Scholars look into the Qur'an and the teachings of Prophet Muhammad (peace be upon him) to find related principles.

Example:

For organ donation, scholars refer to the verse: "And whoever saves one [life] - it is as if he had saved mankind entirely." (Surah Al-Ma'idah, 5:32)

Discuss Among Scholars

What Happens:

Scholars meet to discuss the issue, considering cultural and practical aspects.

Example:

Councils like the International Islamic Fiqh Academy (IIFA) hold meetings to deliberate on modern issues.

Consensus of Scholars Regarding Current Issues

How is Ijma Formed Today?

Reach Agreement

What Happens:

After discussions, scholars agree on a decision and issue a collective ruling, known as a fatwa.

Example:

Scholars agreed that using digital currencies is permissible if it avoids interest (riba) and fraud.

Institutions Involved

Several organizations help form Ijma today:

International Islamic Fiqh Academy (IIFA):

Addresses global issues like bioethics and finance.

Fiqh Council of North America (FCNA):

Provides guidance for Muslims in North America.

European Council for Fatwa and Research (ECFR):

Issues rulings for Muslims in Europe.

Consensus of Scholars Regarding Current Issues

Key Institutions Facilitating Ijma

In today's world, several important Islamic organizations help scholars come together to agree on religious matters. These institutions ensure that Islamic teachings remain relevant and provide guidance on new issues.

International Islamic Fiqh Academy (IIFA)

What It Is: A global organization based in Jeddah, Saudi Arabia, established in 1981.

Role: Brings together scholars from different countries to discuss and issue rulings on modern issues like medicine, finance, and technology.

Example: The IIFA issued guidelines on organ transplantation, stating it is permissible under certain conditions, aligning with Islamic principles.

National Fiqh Councils

What They Are: Local groups of scholars in individual countries.

Role: Address local issues and provide guidance to Muslims in their region.

Example: The Fiqh Council of North America provides guidance on moon sighting for Ramadan and Eid, helping Muslims in North America determine the start of Islamic months.

Consensus of Scholars Regarding Current Issues

Key Institutions Facilitating Ijma

Al-Azhar University (Egypt)

What It Is: One of the oldest and most respected Islamic universities, located in Cairo, Egypt.

Role: Educates scholars and issues religious rulings on various matters.

Example: Al-Azhar's Council of Senior Scholars plays a key role in interpreting Islamic law and guiding Muslims on contemporary issues.

Consensus of Scholars Regarding Current Issues

Challenges in Achieving Ijma Today

In the modern world, reaching a consensus among Islamic scholars (Ijma) faces several challenges:

Diverse Opinions Across Cultures and Sects

Issue: Muslims belong to various cultures and follow different schools of thought (madhhabs), leading to varied interpretations of Islamic teachings.

Example: The celebration of the Prophet Muhammad's (peace be upon him) birthday (Mawlid) is accepted in some communities but considered an innovation (bid'ah) in others.

Reference: Different madhhabs have unique perspectives, which can make unanimous agreement challenging.

Rapid Technological Advancements

Issue: New technologies like artificial intelligence, biotechnology, and digital currencies emerge quickly, posing questions that traditional Islamic jurisprudence hasn't

Example: The permissibility of using cryptocurrencies like Bitcoin varies among scholars, with some accepting them under certain conditions and others expressing caution.

Reference: Scholars strive to apply Islamic principles to modern innovations, but rapid changes can outpace consensus-building efforts.

Consensus of Scholars Regarding Current Issues

Challenges in Achieving Ijma Today

Lack of a Central Authority for All Muslims

Issue: Unlike in the past, there is no single global Islamic authority to make binding decisions for all Muslims.

Example: Different countries may start Ramadan on different days due to varying moon sighting methods, leading to confusion among Muslims.

Reference: Efforts like the Amman Message aim to promote unity among Muslims by recognizing the validity of various Islamic schools of thought.

Political and Social Pressures on Scholars

Issue: Scholars may face pressure from governments or social groups, influencing their ability to issue unbiased religious rulings.

Example: In some regions, scholars might avoid discussing sensitive topics like human rights or political justice due to potential repercussions.

Reference: Political and social dynamics can impact the independence of scholarly opinions, affecting the formation of consensus.